

Approved as to
form only:
D. Whisenand
Date: 9/16/2013

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTIONS 1.1.6 & 2.4.1 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, REPEALING AND REENACTING UNIFIED DEVELOPMENT CODE SECTION 2.4.2, ANNEXATIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on January 23, 2012 the Governing Body of the City of Cheyenne unanimously adopted the "Unified Development Code" (UDC) (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 2. That, in accordance with UDC 2.4.1.b.1, the sponsor of this ordinance, by his own initiative, finds that Section 2.4.2 of the UDC should be amended.

Section 3. That on September 16, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed UDC amendment that is the subject of this ordinance, and recommended approval of said amendment.

Section 4. That UDC Section 2.4.2, Annexations, is hereby repealed and reenacted to read as follows:

"Annexations to the City of Cheyenne shall be processed and conducted in accordance with Wyo. Stat. §§ 15-1-401 *et seq.*"

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk



A COMMUNITY OF CHOICE

PLANNING AND DEVELOPMENT SERVICES

URBAN PLANNING OFFICE

2101 O'Neil Avenue, Suite 309, Cheyenne, Wyoming 82001

307.637.6286 jflesher@cheyennecity.org 307.637.6366 (Fax)

UDC Amendment Staff Report
UDC Section 2.4.2, Annexations

Case Number: PLN-13-00015
Planner: Jim Flesher
Meeting Dates: Planning Commission: September 16, 2013
City Council: September 23, 2013 (referral to committee)
Submitted by: Councilmember Sean Allen

Summary

On July 12, 2013, Councilmember Sean Allen emailed a draft ordinance to Dan White, City Attorney, regarding Section 2.4.2, Annexations, of the Cheyenne Unified Development Code (UDC). After some discussion it was agreed that the section of the UDC on annexations should only refer to state statute.

Staff recommends approval of the ordinance.

Background

Historically, the annexation process included a public hearing at a City Council meeting as required by statute, followed by introduction of a resolution finding compliance with statutory eligibility requirements and referral of the resolution to Public Services Committee (PSC) for review and recommendations, then final reading of the resolution, followed by introduction of an ordinance annexing the property at the following Council meeting, which was referred to PSC, followed by the second reading at Council, PSC, and third reading at Council.

The process has been shortened considerably by conducting the public hearing and introducing both the resolution and ordinance at the same Council meeting. State statute does not require the resolution for annexations that are voluntary where the owner is petitioning the City to annex his or her land; only for "forced" annexations where the City is annexing land without a petition. However, when the UDC was adopted, the current process including the resolution provision was included.

The proposed ordinance would remove provisions relating to annexations from the UDC and have it simply refer to state statute. If approved by Council, the step of adopting a resolution finding compliance with state statute would be eliminated and the annexation ordinance would fulfill that requirement. Petitions for annexation would still be required to meet the requirements of Section 1.16.030 of City Code and a public hearing would still be conducted at a Council meeting.

While this UDC amendment was not proposed with the 2013 Annual Review, it is considered a minor amendment and staff recommends the Planning Commission forward a recommendation of approval to the Governing Body.

At its regular meeting on Monday, September 16, 2013, the Cheyenne Planning Commission recommended approval of the proposed UDC amendment.

Reviewing Agency and Reviewers Comments: None.

Agencies Responding without Comment: City Attorney.

Agencies Not Responding: None.

Other Comments Received: None.

Encl: Draft Ordinance

cc: Councilmember Allen
File